

Cross-Complainant All Seasons Mechanical, Inc. is to obtain counsel and file proof of representation within thirty (30) days of this court's order.

Failure to obtain counsel and provide proof of representation within thirty (30) days of this court's order may result in the cross-complaint being stricken without leave to amend.

22CV-01155

Estate of Devonea Graham, et al. vs County of Merced, et al.

Order to Show Cause Re: Dismissal - Notice of Settlement

Appearance required. On July 6, 2026, counsel informed the Court of their intent to file a dismissal the same day after the court hearing. No dismissal has been filed. Appear to show cause why the matter should not be dismissed pursuant to California Rules of Court, rule 3.1385 and Code of Civil Procedure section 664.6

23CV-00838

Maria Medina vs Moises Zaragoza, et al.

Motion to Bifurcate Issues at Trial

The motion to bifurcate the punitive damages issues from the liability and compensatory damages phase of trial is GRANTED.

For the first phase, the trier of fact will first decide liability, actual damages, and whether Plaintiff has proven malice, oppression, or fraud. Only if the trier of fact finds Plaintiff has proven malice, oppression, or fraud, will the trial advance to the second phase regarding the amount of punitive damages.

Defendant is ordered to file a proposed order consistent with this court's order within five (5) days.

24CV-06583

Alma Quintero Sanchez vs David Rodriguez

Order to Show Cause Re: Dismissal - Notice of Settlement

Appearance required. Appear to address the status of the conditional settlement for which notice was filed February 13, 2026, with an anticipated dismissal date of May 12, 2026, and show cause why the Court should not dismiss the matter, retaining jurisdiction for enforcement purposes pursuant to Code of Civil Procedure section 664.6. If there are no appearances, the matter may be dismissed by the Court pursuant to the settlement under California Rules of Court, rule 3.1385, as more than 45 days have passed since the date the settlement agreement conditions were to be completed.

Motion to Compel Initial Disclosures Pursuant to California Code of Civil Procedure 871.26 And Request for Monetary Sanctions

Plaintiff's motion to compel initial disclosures pursuant to Code of Civil Procedure section 871.26 and request for monetary sanctions is DENIED.

As an initial matter, Code of Civil Procedure section 871.26 provides no mechanism in which a party may move to compel the initial disclosures. Section 871.26 only provides for monetary sanctions and evidentiary sanctions for repeated noncompliance. (See Code Civ. Proc. § 871.26, subd. (j).)

A plain reading of the statute shows the standard discovery procedures, including the compulsion provisions of the Civil Discovery Act, do not apply until mediation is concluded pursuant to Code of Civil Procedure section 871.26, subdivision (d). (See Code Civ. Proc. § 871.26, subd. (e). [“if the case is not resolved at the conclusion of mediation, standard discovery procedures . . . (commencing with Section 2016.010) . . . shall apply . . .”]) The court notes there is no evidence before this court regarding such meditation.

Further, this court finds there was no requirement that the initial document production by Defendant be verified. The verification requirement regarding initial disclosures is pursuant to Code of Civil Procedure section 2016.090. Section 2016.090 is only applicable if there has been a demand by one of the parties for initial disclosures. In contrast, the initial disclosure requirement of section 871.26 is mandatory and contains no verification requirement as found in section 2016.090, subdivision (a)(5).

Last, Defendant has provided admissible evidence that Defendant's mandatory initial document production, pursuant to section 871.26, subdivision (h), has been completed prior to the filing of this motion. Even assuming the February 2026 initial document production was late or incomplete, Defendant has shown good cause why there may have been a failure to fully comply with the document production requirement pursuant to section 871.26, subdivision (b).

Accordingly, Plaintiff's motion and request for monetary sanctions is denied.

Order to Show Cause Re: Dismissal - Notice of Settlement

VACATED. This matter is set for a status conference to confirm deposit of funds into blocked accounts pursuant to the minors' compromises on November 2, 2026, at 8:15 a.m. in Courtroom 8.
